From a Box of Papers to One Page for the Attorney

An ordered plan for your family's part: ten actions, with a line for who does each and by when.

The goal: you can hand an elder law attorney Mom's papers, the facts they'll ask about and your questions, all in one place.

Share the list. Put a name and a day next to each action, and tick it when it's done.

ACTION	WHO	BY WHEN	DONE
1. Gather every legal paper you can find for Mom: powers of attorney, healthcare documents, any trust, her will, the deed. Ask relatives which ones they hold.			
2. List each paper with the date on it and where it is kept. List separately the ones you've heard about but haven't found.			
3. Write down who each paper names to act for Mom, in the paper's own words, for the attorney to confirm.			
4. Write down what you've seen of how Mom is managing decisions, as what you saw and when.			
5. Write down how her home and any other property are titled, as far as the papers show.			
6. List any gifts, transfers or ownership changes already made, with dates as best you know them.			
7. List any change the family is talking about: the house, other assets, a beneficiary. Mark each one “being discussed.”			
8. Note whether Mom is married, and write down anything you want to ask about her spouse's situation or about estate recovery.			
9. Write a short list of legal questions for the attorney, including whether the existing authority is enough for the Medicaid plan.			
10. Put the papers, the facts, the questions and the financial information you've already organized together, ready to hand over.			

You're done when

Mom's papers are listed with their dates and where they are, the people they name are written down, the facts about the house and any gifts or transfers are on paper, and your questions are on one short list. What comes after that, the attorney's review, any legal advice and any change to Mom's plan, isn't on this list, because it isn't the family's to do alone.

If it doesn't go smoothly

- Don't fill a gap by guessing. “Haven't found it” and “not sure” are finished lines.
- If a paper can't be found, write down who might have it and keep going. The list of what's missing goes to the attorney too.
- If the family feels ready to change something about the house or an account partway through, add it to the “being discussed” list and bring it to the attorney first.

What this plan doesn't do

It organizes your family's part: facts, documents and questions for an elder law attorney's review. It isn't legal, financial or tax advice, and finishing it doesn't establish that any document, transfer or strategy is right for your family. Rules vary by state.

Ready for the next step?

Your family's part is in order: the papers, the facts and the questions. The planning interview is the next step: answer its questions about your family's situation and it gives you a free planning report you can bring to the attorney and to your Medicaid planner.

Get Your Free Planning Report ›